

LOOKING AHEAD
Prime Minister Narendra Modi and other MPs on their way to the new Parliament, Sept. 19

The BJP says that since delimitation is just three years away, there was no point in implementing women's reservation for the 2024 polls

representation of women has been one of the main reasons," says former chief election commissioner (CEC) S.Y. Qureshi. "The women's reservation bill is a step in the right direction."

Besides reserving a third of the seats for women in the Lok Sabha and state assemblies, the bill also mandates that one-third of the seats reserved for Scheduled Castes and Tribes be set aside for women in these categories. Women in Other Backward Classes (OBCs), however, have not been given a quota—none exists for the bloc as a whole anyway, politically. Nor will the quota apply to the Upper House at the central or state levels. Such reservation will continue for 15 years from the commencement of the Act, with Parliament empowered to extend it further. The reserved seats for women will be rotated after subsequent delimitation exercises, to be determined by Parliament by law.

Introduced by the Union minister of law and justice Arjun Ram Meghwal as the Constitution (128th Amendment) Bill, 2023 (later corrected to 106th Amendment), it's also the first legislation to be tabled in the new Parliament complex. Given that it is a constitution amendment bill, it needs to be passed by both Houses of Parliament with "special majority"—a majority of the total members of each House, plus a majority of the two-thirds of the House present and voting. The prime minister, during his speech in the Lok Sabha, called himself "the chosen one for empowering and strengthening women", for which he had convened a special five-day session of Parliament. With almost all parties finding it difficult to oppose it in totality, the bill was passed in the Lok Sabha with 454 members in favour, and only two members, both from the All-India Majlis-e-Ittehadul Muslimeen, opposing it. On September 21, the bill was also passed in the Rajya Sabha by 214 votes after an 11-hour debate.

DELIMITATION LIMITATION

The current legislation is almost identical to the one the Rajya Sabha passed in March 2010 under the Congress-led United Progressive Alliance government—with one crucial difference. The women's reservation in this bill will kick in only after the completion of the delimitation exercise based on the first Census to be conducted after its passage. The delimitation exercise, as mandated by Article 170 of the Constitution and the Representation of the People Act, 1950, redraws the boundaries of the legislative constituencies to reflect changes in population. It also reworks the number of seats reserved for SC/STs, as provided by Articles 330 and 332 of the Constitution.

The Constitution mandates that such delimitation be conducted after every Census. Four such exercises were conducted till 1976. However, population-based delimitation meant that states with high population growth,